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KANT'S EXAMPLES OF THE FIRST FORMULATION OF THE CATEGORICAL IMPERATIVE

I do not know of any commentator who has given an accurate account of all of Kant's examples of the first formulation of the categorical imperative, and though some have given an accurate account of some examples, there are other examples of which no-one has given an accurate account. Accounts of the first formulation of the categorical imperative have frequently been vitiated by the assumption that what he says in dealing with one of his examples—a different one in the case of different commentators—can be taken as showing, without consideration of the other examples, what Kant meant by the first formulation of the categorical imperative. Commentators have frequently been misled in their account of Kant's argument in the examples not only because they have assumed that Kant always does what one would expect him to do from what he says about the categorical imperative generally, but because they have found a certain argument in one of the examples, and then seen it when it was not there in one or more of the other examples. Kant's treatment of his four examples is extremely wayward and sometimes inconsequential, and each one of them must be considered independently both of the others and of Kant's remarks about his own programme.

Kant divides duties into perfect and imperfect duties, and into duties to self and duties to others. If you combine these two divisions, four classes of duty result, (a) perfect duty to self, (b) perfect duty to others, (c) imperfect duty to self, and (d) imperfect duty to others. Kant gives one example of each of these four classes. It does not appear to me that there is any noticeable difference between Kant's treatment of duties to self and duties to others. There is obviously, however, a great deal of difference between his treatment of perfect and imperfect duties. It is alleged to be *impossible* for everybody to adopt the maxim which I adopt when I infringe a perfect duty. It is not impossible for everybody to adopt the maxim which I act on when I infringe an imperfect duty; it is merely impossible for me to will that everyone should adopt this maxim. Before going on to a detailed consideration of Kant's four examples of the application of the first formulation of the categorical imperative, there are some general comments I wish to make.

(1) In the first formulation of the categorical imperative, Kant was attempting to put forward the supreme principle of morality, and in this respect the first formulation of the categorical imperative is similar to the principle of utilitarianism. He is not just telling us that what is right for me is right for any similar person similarly placed, which would not tell me

what was right for me; nor is he laying down certain conditions (for example that they should be of unrestricted generality) to which a principle must conform if it is to be a moral principle, from which, of course, no moral principle could be deduced. These are things which Kant takes for granted, but they are not what he is trying to prove. To hold that this is all that Kant is saying is to replace views which are exciting and important, if erroneous, by certain harmless platitudes, which would make ridiculous the fanfare of trumpets with which Kant heralded them.

(2) Kant did not use the first formulation of the categorical imperative to test whether certain alleged moral principles really were moral principles, or even to test whether they were acceptable moral principles. He does not use it to test the morality of moral principles at all, but the morality of maxims. For the same reason, it cannot be held that Kant is dealing with a problem which has received a good deal of attention recently, the problem of the universalisation of moral judgements and the universalisation of moral reasons. It has been held, I think rightly, that any moral judgement gives rise to a moral principle, on the ground that if a particular moral judgement is true of a given action, then the same moral judgement must apply to all similar actions performed in similar circumstances, and it has also been held that if a certain statement is a good reason for coming to a certain moral conclusion, then the same statement must give rise to the same moral conclusion in all similar cases. Kant is not, however, discussing the universalisation of moral judgements or of reasons for moral judgements, but the universalisation of maxims, e.g. he does not consider the moral judgement 'It is right for me to borrow this money, though I know I cannot pay it back' but the maxim 'Whenever I believe myself short of money, I will borrow money and promise to pay it back, though I know that this will never be done'. Nor is he saying that if a maxim is right for me, it is right for everyone, but that if it is not possible for everyone to act on it (or not possible for me to will that everyone should act on it) it is not right for me to act on it.

The following points about maxims should be noted: (a) A maxim is a subjective principle of action, that is, a principle on which a man in fact acts. It seems to me that by this it is meant that a maxim is a rule which a man makes for himself. If I make it a rule to rise at seven, then to rise at seven is my maxim. If I make it a rule to make promises which I cannot keep, whenever I need a service which I cannot obtain in any other way, then to make such promises is my maxim. (b) Maxims can be formulated, but what the words which formulate them express cannot properly be said to be true or to be false. My maxim will be expressed in words such as 'to turn the other cheek' or 'always to declare my full income'. It does not make sense to say that 'to turn the other cheek' expresses a truth or a falsehood. (c) Maxims may be 'legislated'. In more ordinary English, maxims are rules which I make for myself, and I may make it a rule to turn the other cheek, or I may not. Whether I make this my rule or not is

something which I personally decide. (d) Maxims are not moral principles, as has already been said. It may well be a valid moral rule that the other cheek ought to be turned, but my maxim or rule is not that the other cheek ought to be turned, but to turn the other cheek. Maxims or rules can be 'made', but moral principles cannot. I can make it a rule to declare my full income, but I cannot make it a rule that men ought to declare their full incomes. To talk of making this a rule does not make sense. (e) Though maxims are not identical with moral principles they can accord or fail to accord with moral principles. My maxim always to tell the truth conforms with a moral principle if it is in fact the case that the truth ought to be told, whereas, on the same hypothesis, my maxim to lie when it suits me does not. (f) Maxims apply only to the person who makes them. I can make it a rule for myself always to rise at seven, but I cannot make this a rule for Jones, or, if I do—let us suppose I am Jones's wife—the rule I make for Jones is not a maxim, but some other sort of rule.

(3) Kant holds (a) that a maxim is not morally acceptable and must not be adopted (ought not to be adopted) if it cannot be universalised; (b) that it may be adopted (it is false that it ought not to be adopted—not to be confused with saying that it ought to be adopted) if it can be universalised. He may also have thought (c) that a maxim must be adopted (ought to be adopted) if what I shall loosely call its 'contradictory' is not universalisable. (a) and (b) are logically independent of one another. (c) would follow from (a) together with the additional premise, which I see no reason to cavil about, that if it is our duty not to do A, then it is our duty to do non-A.

(4) A maxim is not universalisable if (a) it is impossible for everyone to act on it, or (b) it is impossible for anyone to will that everyone should act on it. When formulating the categorical imperative, Kant only mentions the impossibility of willing that everyone should act on a given maxim. Perfect duties, therefore, would only fall under Kant's first formulation of the categorical imperative if we can assume that, if it is impossible for everyone to act on a given maxim, it is impossible for anyone to will that everyone should act on it. I shall assume that what Kant means by saying that we cannot will that a maxim should become a universal law is that, if it were within our power to bring about a state of affairs in which everyone acted on our maxim, we could not bring ourselves to do it, or, what comes to the same thing, that if, as a result of our acting on a given maxim, it became a law of nature that everyone acted on that maxim, we would not act on it. The statement that, if it were within my power to bring about a state of affairs in which everyone acted on a maxim which infringed an imperfect duty, I could not do it, is a hypothetical proposition with a false antecedent, and there are difficulties enough about these. The statement that, if it were within my power to bring about a state of affairs where everybody acted on a maxim which infringed a perfect duty, I could not do it, is, on Kant's view, a hypothetical proposition with a logically false antecedent; for if it is logically impossible for everyone to act on a given

maxim, it must be logically impossible for me to have the power to will that they should. I do not know how one decides what one could or could not bring oneself to do in the event of some state of affairs being realised, the realisation of which is logically impossible.

(5) There is no logical difficulty whatsoever in deducing whether or not a maxim is morally acceptable from Kant's first formulation of the categorical imperative, as there would be if he were merely saying that what is right for me is right for anyone or that moral principles must be unrestrictedly general. We simply argue syllogistically as follows: A maxim is not morally acceptable, if it is either impossible for everyone to act on it or impossible for the person whose maxim it is to will that everyone should act on it; it is either impossible for everyone to act on this maxim or impossible for me to will that everyone should act on it; therefore this maxim is not morally acceptable.

(6) There certainly are maxims which it is logically impossible for everyone to act on. For example, I may make it a rule to be first through every door, but not everybody could successfully make this their rule. I am not convinced that there are any maxims which I could not, if I made a supreme effort, will that everybody should adopt (supposing this to be in my power) but there certainly are maxims which I would be unlikely to act on, if I knew that as a result of my acting on them everyone else would adopt and act on them. I may make it a rule to consume without producing, but I should be unlikely to make this my rule if I knew that, as a result of my making this my rule, everyone else would make it their rule.

The first maxim the universalisation of which Kant considers is one which enjoins suicide. Kant states the maxim as follows: 'From self-love I make it my principle to shorten my life if its continuance threatens more evil than it promises pleasure', but he is quite wrong to state it in this way. The phrase 'From self-love I make it my principle' has nothing to do with my maxim, but only with the motives which cause me to adopt the maxim. These words should be omitted, therefore, in which case my maxim will be simply 'to shorten my life if its continuance threatens more evil than it promises pleasure'. It is perhaps a little odd to speak of this as a rule—I have maintained that to adopt a maxim is to make so-and-so a rule. It is a little odd to say that I make it a rule to commit suicide, for I can only do this once, but this limitation does not spring from the nature of my maxim, but from matter of fact extraneous to it, so perhaps it can be ignored.

What, then, is the contradiction which would result if this maxim were to be universally adopted? There must be such a contradiction, of course, because suicide is alleged to be a perfect duty, not an imperfect one. It is natural, I think, to suppose from what Kant says in other places—he says, for example, that it is inconceivable that a maxim which infringes perfect

duty should be universalised—to look for a contradiction in the conception of everybody's acting on this maxim : to look for a contradiction in the bare statement that everybody is acting on it. It is obvious to the meanest intelligence, however, that there is no contradiction whatsoever in the idea of everyone's committing suicide if they would be happier dead, and, what is more, Kant makes no attempt whatsoever to show that there is such a contradiction. What he does try to show is, not that the statement that everybody acts on this maxim is self-contradictory, but that it contradicts another statement, a statement of fact, namely that the purpose of self-love is 'to stimulate the furtherance of life', which I shall take to mean—I don't think it affects my argument if I am wrong—that the purpose of self-love is to prevent people from committing suicide.

Either something can have a purpose which it usually does not fulfil—as my watch usually does not fulfil its purpose of telling the time—or it cannot. In the first case, there is obviously no contradiction between the statement that self-love usually prompts people to commit suicide, and the statement that the purpose of self-love is to stop people from committing suicide. Is there a contradiction in the second case? Perhaps there would be if the universal adoption of my rule to commit suicide if I should be happier dead would mean that self-love usually led people to kill themselves, but it does not mean this. My rule—and Kant almost seems to forget this—is not simply to commit suicide, but to commit suicide if I should be happier dead. Since it is not unreasonable to suppose that those people who would be happier dead are in a minority, the universal adoption of my maxim would not mean that people usually committed suicide, and not mean, therefore, that self-love usually (or even frequently) caused people to commit suicide.

It is not sufficient, of course, for the statement that everybody acts on my maxim to commit suicide if I shall be happier dead to contradict the statement that the purpose of self-love is to stimulate the furtherance of life. It is also necessary for this to be a true statement. To consider whether it is a true statement or not, however, is not a problem for a moral philosopher.

Let us now pass to Kant's second example—one of perfect duty to others. The maxim the universalisation of which he considers is this : 'Whenever I believe myself short of money, I will borrow money and promise to pay it back, though I know that this will never be done'. Kant argues that, though it is possible for me to adopt and act on this maxim, it is not possible for everybody to adopt and act on it ; for, were they to do so, no-one would trust anyone who made a promise to keep it, hence no-one would be able to obtain a service by making a promise, hence no-one would make any promises, hence no-one would be able to act on the maxim in question.

On this argument I have the following comments to make :

(1) Kant is obviously not considering the universalisation of the maxim he says he is considering, which concerns only obtaining money by promising to pay it back. The universalisation of this maxim would not lead to a cessation of promise-making in general, but only to a cessation of promising to pay back loans. However, I see no reason why we should not be charitable to Kant in this, if in no other, instance, and substitute for the maxim he states the more general rule to promise anything to obtain any service, even when I know I cannot keep my promise.

(2) Kant claims that the statement that everybody acts on this maxim is self-contradictory, 'that this maxim can never rank as a universal law and be self-consistent'. He has not shown that this statement is self-contradictory, however. He has at most shown that it is impossible for everyone to act on my maxim to obtain services by making promises which I know I cannot keep, given that certain contingent statements are true. The contingent statements in question include at least the following : (a) People frequently find themselves in circumstances when they need a service which they can only obtain by making a promise they cannot keep. Unless this statement were true, the universal adoption of my maxim would not lead to much dishonest promise-making, and so promise-making would not cease to be a human practice. (b) People usually remember when in the past other people have made promises they cannot keep. If people always forgot this, then people could quite happily go on obtaining services by making promises they could not keep, and promises would not cease to be made. (c) People are sufficiently egotistical not to provide a service for someone, in return for a promise to perform a future service, unless they think there is a reasonably high probability that the promise is one which can be kept. I am not disputing the truth of any of these statements. What I am doing is pointing out that they are contingent statements, and that if the universalisation of my maxim is only impossible given the truth of certain contingent assertions, its universalisation is not logically impossible.

(3) I am willing to grant that if everyone acted on the maxim in question, promise-making would die out. This, however, does not mean that it is impossible for everybody to act on my rule to obtain services by making promises I know I cannot keep. For my rule is hypothetical : If circumstances arise in which you can obtain a service by making a promise which you know you cannot keep, make that promise—and there is a perfectly good sense in which everybody can make this their maxim, even if, as will be the case if everybody does make it their maxim, circumstances never do arise in which they can obtain a service by making a promise they know they cannot keep.

(4) You would expect Kant's treatment of promise-making to be parallel to his treatment of suicide, since they are both cases of perfect duty. They are not parallel, however, as they would be if he said something like 'Everybody cannot make promises they know they cannot keep, for the purpose of

some motive, e.g. enlightened self-interest, is to prevent people making such promises.'

I shall now depart from the order in which Kant considers his examples, and consider the fourth before the third, for a reason which will be apparent later. The third and the fourth examples, of course, are examples of imperfect duties, so there is no impossibility in my maxim's being universally adopted. What is impossible is that I should be able to will its universal adoption, or that I should be able to act on the maxim, if I knew that as a result, by some queer freak of nature, it would be universally adopted.

Kant states his fourth maxim in an extremely rhetorical way, which I shall not repeat. It appears, however, that the maxim or rule in question is 'Never to help others in distress'. Kant argues that, though I can adopt the maxim, I cannot will its universal adoption, and the reason why I cannot will its universal adoption is that, if it were universally adopted, no-one would help me when I was in distress.

Again, I have the following comments to make :

(1) It has often been alleged that Kant is appealing to self-interest in this particular example. This is not the case. He does not argue that it is wrong to adopt the maxim of not helping others in distress, because as a result no-one would help me when I was in distress, which would consist in an appeal to self-interest. It is not the consequences of my adopting the maxim which are contrary to my interest, but what would happen if everybody adopted it. Since there is no suggestion that my adopting the maxim would actually cause others to adopt it, (i.e. the condition in the hypothetical statement, 'if everyone adopted my maxim, no-one would help me when I was in distress', is unfulfilled) there is no suggestion that the action is wrong because it has unfortunate consequences for me.

(2) The reason why it is wrong for me to make a rule never to help anyone in distress is that, if I were to will that everyone acted on this maxim, my will would be at variance with itself. I take this to mean that, though there is a motive for willing the universal adoption of my maxim, for if my maxim were universally adopted, I should not have the disagreeable task of helping others in distress, there is also a motive against, for I would in this case not have the agreeable experience of being helped by others. I am not sure whether or not it is Kant's view that it is the same motive which militates both for and against the universal adoption of my maxim, or whether it may be one motive which militates for, and a different motive which militates against. Nor am I sure that Kant's view is not that there would be motives for and against the universal adoption of my maxim, but that the same motive which would make me want to adopt the maxim myself would make me want it not to be universally adopted. Or perhaps his view is that, though there is a motive for adopting the maxim myself, there is some other motive for not wanting it to be universally adopted.

(3) It should be pointed out that to say that a will which willed the universal adoption of my rule not to help others in distress would be at variance with itself, is not to say that it is impossible for me to will the universal adoption of my maxim. I often do things in spite of motives impelling me not to do those things. From the fact that my will would be at variance with itself if it willed the universal adoption of my maxim it does not follow that I cannot will the universal adoption of my maxim. All that does follow is that I cannot will it wholeheartedly.

Kant's third example, which I am taking last, of a maxim which cannot be universalised is 'neglect to develop my natural gifts'. The reason why, though a man can adopt and act on this maxim himself, he cannot will that everyone should adopt and act on it, is that 'as a rational being he necessarily wills that all his powers should be developed, since they serve him, and are given him, for all sorts of possible purposes'.

My comments are as follows :

(1) The reason why I took the fourth example before the third was that I wanted to point out a lack of similarity in Kant's treatment of the two cases. If Kant's treatment of the third example had been analogous to his treatment of the fourth, what he would have said, presumably, would have been that, though I can act on the maxim 'neglect my talents' myself, I cannot will that everyone should make this their maxim, for in that case I should be deprived of any benefits accruing to me from other people's developing their talents. It is obvious that I do benefit from other people's developing their talents. However, what Kant in fact says is, not that I cannot will the universalisation of my maxim because other people's talents are useful to me, but that I cannot will the universalisation of my maxim because my talents are useful to me.

(2) If the fact that a man's talents are useful to that man is not sufficient to prevent him from neglecting to develop them—as it obviously is not, for people do neglect to develop their talents, in spite of the fact that these are useful to them—it is not going to stop him from willing the universal neglect of talent-developing. For Kant's argument to have any sort of plausibility, it would have to be the case that the fact that my talents were useful to me was a better reason for not willing that everybody should neglect their talents than for not willing that I should neglect my own talents. The case is quite the opposite, however. That my talents are useful to me is a much better reason for not neglecting my own talents than it is for not willing universal neglect of talents.

(3) I am somewhat at a loss to know what is the import of the phrase 'as a rational being' in 'For as a rational being he necessarily wills that all his powers should be developed. . . .'. This statement cannot be equivalent to the statement which you would get if you omitted the phrase in

question, which is 'He necessarily wills that all his powers should be developed'. For it is absolutely obvious that this statement is false, and Kant must have known that it was obvious. Perhaps 'As a rational being he necessarily wills that all his powers should be developed' means 'If he were a completely (instead of a partially) rational being, he would necessarily will that all his powers be developed'. The most this statement would prove would be that a completely rational being could not will neglect of his own talents. It would not prove, what Kant claims he is trying to prove, that I, who am not a completely rational being, cannot will universal neglect of talents. In any case, as has often been pointed out, if 'rational being' means 'being who always wills what is right', you could not deduce that talent-neglecting was wrong from the fact that a rational being could not will it. All you could do would be to deduce that a rational being could not will talent-neglecting from the prior fact that it was wrong.

I now want to make some general comments relevant to Kant's four examples of the application of the first formulation of the categorical imperative:

(1) Only in one case, the third, does Kant make any mention of the actual consequences of my adopting a given maxim in order to show that it is one which ought not to be adopted. In dealing with the third example, Kant does point out, as we have seen, that my talents are useful to me, i.e. that adopting the maxim of talent-neglecting would have bad consequences for myself. Only this is not a utilitarian argument, for Kant is not saying that my adopting the maxim would be harmful to society as a whole, but that it would be harmful to me, the agent. Furthermore, this is not held to be the reason why my maxim is a wrong one. The reason why it is wrong is that I cannot will its universal adoption, and that it has harmful consequences for me is—allegedly—the reason why I cannot will its universal adoption.

(2) Not only is there no appeal to the actual bad consequences of my adopting a given maxim, alleged to be wrong; there is no appeal to the fact that the consequences of everyone's adopting the same maxim would be bad. There is, of course, mention of what would happen if everyone were to adopt my maxim, but this is not the same thing as an appeal to the bad consequences of what would happen, if everyone were to adopt my maxim. It is quite clear, of course, that, in all the four cases Kant considers, the universal adoption of the maxim in question would be bad; but Kant never appeals to this as a reason for thinking the maxim a wrong one. Furthermore, it is sometimes the case that the adoption of a given maxim by n people would be more than n times worse than the adoption of this maxim by one person alone. In such cases some philosophers have argued that I ought to take account of the bad consequences of the universal adoption of the maxim as well as or instead of the bad consequences of the adoption

of the maxim by myself only. I should like to point out that in the case of Kant's second example, concerning the making of promises, the consequences of the adoption of the maxim 'Obtain services by making promises you know you cannot keep' by n people would quite clearly be more than n times worse than the consequences of the adoption of this maxim by one person. In the case of suicide and talent neglecting it is arguable that the same would be true, though they are less obvious cases. Only in the case of not helping others in distress does it seem pretty clear that the consequences of the adoption of the maxim by n people would not be more than n times worse than the adoption of the maxim by one person. These, however, are just facts about Kant's examples. Kant himself makes no use of them, though the theory that does has a distinctly Kantian flavour.

(3) There is an occasional reference to purpose in Kant's examples. In his third example, Kant says that our talents are given us for all sorts of possible ends, though this is not alleged to be the reason why it is wrong not to develop them, but to be the reason why, as a rational being, I cannot will that everyone should neglect to develop them. In Kant's first example there is a reference to the purpose of self-love, which is said to be to stimulate the furtherance of life, though, again, this is not held to be the reason why it is wrong to commit suicide, but to be the reason why it is impossible that everyone should act on my maxim enjoining suicide in certain circumstances. In Kant's second example there is a reference to the purpose of promising, but I interpret this not as being a reference to the purpose of promising itself—compare 'the purpose of the liver'—or to the purpose some transcendent being has for promising, but to ordinary human purposes in making promises. On these references to purposes I shall allow myself one brief comment. If Kant were arguing—and I have just pointed out reasons for thinking he is not—that suicide from self-love and talent-neglecting are wrong because this is to use self-love and talents for purposes other than those which they have, or for which they were intended, then, if this argument were valid at all, its conclusion would follow immediately, without any reference to the universalisation of suicide from self-love or to the universalisation of talent-neglecting.

(4) There are a number of maxims which are such that what might be termed the 'natural' or 'normal' purpose—though not just any purpose—of anyone's adopting them would be defeated if they were adopted by everybody. It is clear that the maxims Kant considers in his last three examples are all of this sort. If my purpose in making it a rule to make promises I cannot keep is to obtain services from others without doing anything in return, my purpose will be defeated if everyone adopts my maxim. If my purpose in making it a rule to neglect my talents is to live on the fruits of other people's labour without myself contributing anything, my purpose will be defeated if everybody adopts my maxim. If my purpose in making it a rule not to help others in distress is to benefit from the help of others without doing anything in return, then my purpose will be defeated if everyone adopts my maxim. This is not true of suicide, however. My

purpose in making it a 'rule' to commit suicide if circumstances arise in which I shall be happier dead will not be defeated if everybody makes this a rule. Furthermore, only in the case of neglecting to help others in distress does Kant actually use this as a reason for thinking that I cannot will the universal adoption of my maxim. In the case of talent-neglecting we could scream with frustration and bafflement because he does not argue in this way. He may be arguing in this way, in the case of making promises you cannot keep, and this may be what he means when he says 'the universality of a law, that everyone believing himself to be in need may make any promise he pleases with the intention not to keep it, would make promising, *and the very purpose of promising*, itself impossible. . .'. Only this is a case of perfect duty, so Kant should be trying to prove that the universalisation of my maxim is impossible, not that I cannot will it, though, of course, there is no reason why he should not try to prove both.

(5) Up to now I have considered the relation between the categorical imperative and the morality of maxims. So far, however, I have not said anything at all about the morality of individual actions. Let us suppose, for the sake of argument, that Kant has provided us with a satisfactory criterion for deciding upon the morality of maxims. It is quite clear to me that Kant thinks that, by doing this, he has automatically also provided us with a criterion for deciding upon the morality of actions. For example, he seems to think that, from the fact that my maxims or rule to commit suicide if I should be happier dead cannot be acted upon by everybody, it follows that the action of committing suicide, which would be performed on this maxim, is wrong. I think this is a howler. A maxim may be wrong, although an individual action performed upon it is right. Let us suppose, for example, that a promise is extracted from me by means of force. I may make it a rule to break promises which it is inconvenient for me to keep, and so break my promise. It is arguable that it is impossible for everybody to act on this maxim, and pretty clear that the maxim is a wrong one, whether it is possible for everybody to act on it or not. But the fact that my maxim was wrong would have no tendency whatsoever to show that my action, of breaking a promise extracted from me by means of force, was wrong. To suppose that it does is to commit a fallacy analogous to that of denying the antecedent in the *modus ponendo ponens*. If my maxim is right, it will follow that every action performed upon it is right, but if my maxim is wrong, it will not follow that every action performed upon it is wrong. In other words, the relation between the morality of maxims and the morality of actions is more complicated than Kant seems to have supposed. I am inclined, fairly tentatively, to say that a maxim is right if and only if every action it could conceivably enjoin is right, and is wrong if some action it could conceivably enjoin is wrong. It does not follow that because a maxim enjoins a right action it is right, nor does it follow that because a maxim is wrong, the action which it enjoins is wrong. (I should also add that for every right action there is at least one, and possibly more than one, right maxim which would enjoin it, and that for every wrong

action there are a large number of wrong maxims which would enjoin it). In other words, you may have : maxim right, action enjoined right ; maxim wrong, action enjoined wrong ; maxim wrong, action enjoined right ; but you cannot have : maxim right, action enjoined wrong. This suggests that, instead of arguing that, because my maxim cannot be universalised, the action it enjoins must be wrong, Kant would have done better to argue that, because my maxim can be universalised, the action it enjoins must be right. In this case, though an action is shown to be right if a maxim can be found for it which can be universalised, it is not shown to be wrong because a maxim can be found for it which cannot be universalised. It is only shown to be wrong if every maxim which would enjoin it cannot be universalised. Is it the case that, if an action is wrong, no maxim which would enjoin it can be universalised? Against this there is a very formidable objection, which I am not sure can be answered. It is this : Given any wrong action, you can find a maxim for it which is so specific that it enjoins that action and no other. For example, my action of killing my mother-in-law would be enjoined by my maxim to kill anyone with purple hair (we will assume my motives are aesthetic ones). If she is the only purple-haired person, it would seem that my maxim can be universalised, in Kant's sense, without contradiction. It is, nevertheless, very wrong of me to kill my mother-in-law.

I want to end by making some very brief remarks on some of the ethical theories which a consideration of Kant's examples of the first formulation of the categorical imperative might suggest.

(1) I have a slight inclination to agree that, if my maxim is such that not everybody can successfully act on it, then it is a wrong maxim—though, as I have pointed out, it does not follow that every action it enjoins is wrong. I do not know how to prove this, however, and I am very far from being sure that it is true. There is an alleged proof of a different statement, namely that, if a maxim is such that not everybody can successfully act on it, it cannot be a maxim on which it is my *duty* to act. The proof is as follows : If it is everybody's duty to act on a maxim, it must be possible for everybody to act on it. Hence if it is not possible for everybody to act on a maxim, it cannot be a duty for everybody to act on it. What is not a duty for everybody is not a duty for anybody. Therefore it cannot be anybody's duty to act on a maxim on which everybody cannot act. I must confess I have some doubt about the premise : What is not a duty for everybody cannot be a duty for anybody, which I suspect some philosophers have confused with the different statement that what is not a duty for me cannot be a duty for anybody else in the same circumstances. I am inclined to think that 'What is not a duty for everybody cannot be a duty for anybody' really means 'What is not a duty for anybody, if everybody else is doing the same, is not a duty for anybody, even where not everybody else is doing the same'. This is not self-evident, for, from the fact that it is not

anybody's duty to do something in one set of circumstances, it does not follow that this is not anybody's duty in another different set of circumstances.

(2) I have very little tendency to agree that, if I should be more reluctant to will the universal adoption of my maxim than to adopt it myself, this shows that the maxim in question is wrong. A murderer who was also a hangman might be very reluctant to will that everybody should make it a rule to hang murderers, but this would not show that the maxim is a wrong one, though it might be wrong for other reasons. I make one exception to this expression of disagreement with Kant, however. If the reason why I am reluctant to will the universalisation of my maxim is that I should be horror-struck at the spectacle of everybody's acting on a wrong maxim—Kant nowhere says that this is the reason—then the fact that I feel this horror does indicate that the maxim in question is wrong. But I do not think you can argue from the fact that I would feel horror at the universalisation of my maxim to the fact that it is wrong—though you can argue from this to the different fact that I think it is wrong—for unless I first thought it was wrong, I should not feel horror at its universalisation, and if I mistakenly thought it was right, I should feel no such horror, and hence contemplating its universalisation would not enable me to correct my mistake.

(3) Lastly, I am very strongly inclined to think that the fact that my maxim would have bad consequences if everybody were to adopt it would show it was wrong, even if my adopting it alone had no bad consequences, but this view has enormous difficulties, with which I have no space to deal adequately. Perhaps the worst of them, however, has already been mentioned. If I make my rule sufficiently specific, so specific that it enjoins simply one action, which itself has no bad consequences, then no bad consequences would result from its universalisation. I should like, if I can, however, to get over the difficulty in the following way. If my maxim is to break my promises, where this has no bad consequences, provided that I happen to be a person with webbed feet—we will assume that I have webbed feet, and that I am the only person who has—everybody else could adopt this maxim without harm resulting. But not everybody could adopt this sort of maxim without harm resulting, for if I can argue that I may break my promises where promise-breaking has no bad consequences because I have webbed feet, someone else may argue that he may break such promises because he is over nine feet high, and someone else that he may break such promises because he is unique in having blood-group Z. But if everyone argued in this sort of way, harm would result. The problem is: What is the difference between arguing in this sort of way, which is not admissible, and arguing in other sorts of way, which are? But I hope I have already said enough to show that, though Kant's theory is not tenable as it stands, there are implicit in it numerous suggestions which it would be profitable to consider at greater length on another occasion.

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